

26STCV12774 26STCV12774

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-10

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Case Number: 26STCV12774 Hearing Date: August 10, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the August 10, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the August 10, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

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[TENTATIVE] MINUTE ORDER

The proof of

service that Plaintiff filed on 6/23/26 reflects service of the operative summons and complaint by mail – not personal service or substitute service or any other means authorized for service of a summons and complaint. Service by mail or email is insufficient because Defendants have never appeared in this action.

Plaintiff's

Counsel has failed to file proof of service of the operative Amended Summons

and First Amended Complaint on all named defendants. Specifically, Plaintiff's Counsel has failed to file proof of service of the operative Amended Summons and First Amended Complaint on PACIFICA OF THE VALLEY CORPORATION.

In court today,

Plaintiff seeks leave to amend the complaint to add a specific dollar amount of damages to the prayer. Plaintiff's oral request for leave to amend the complaint is granted. If Plaintiff wishes to amend the complaint, Plaintiff must file the amended complaint by no later than August 20, 2026

By no later than October

5, 2026, Plaintiff's Counsel must file either proof of service of the operative Amended Summons and (anticipated) operative Second Amended Complaint on PACIFICA OF THE VALLEY CORPORATION or a declaration explaining the failure to file proofs of service of the operative Amended Summons and First Amended Complaint on PACIFICA OF THE VALLEY CORPORATION, setting forth any and all efforts undertaken to attempt service of the operative Amended Summons and (anticipated) operative Second Amended Complaint on PACIFICA OF THE VALLEY CORPORATION, and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Amended Summons and (anticipated) operative Second Amended Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file

proof of service of the operative Amended Summons and (anticipated) operative Second Amended Complaint on PACIFICA OF THE VALLEY CORPORATION by October 5, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are

ordered to file a timely Notice of Appearance within 30 days of service of the operative Amended Summons and (anticipated) operative Second Amended Complaint on them.

If any named

Defendant fails to timely respond to service of the operative Amended Summons and (anticipated) operative Second Amended Complaint by filing a Notice of Appearance, Plaintiff must timely seek and obtain entry of default against all such named Defendants who fail to timely file a Notice of Appearance.

The previously

imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to October 12, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than October 5, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.